

Calendar Line # 2
Case Name Gianni Amato vs Plan 51 Homeowners Association et al
Case No. 26CV493956
Hearing: OSC TRO/ Preliminary Injunction
<u>I. BACKGROUND</u> On June 11, 2026, Plaintiff Gianni Amato (“Amato”) filed a First Amended Complaint for damages, injunctive relief and declaratory relief, including: breach of CC&R under Civil Code section 4775, breach of fiduciary duty, negligence and negligence per se, retaliation, tortious inference, fraudulent misrepresentation, fraudulent concealment, records violations, unfair business practice, intentional infliction of emotional distress, negligent infliction of emotional distress, FEHA, Unruh Civil Rights Act, private nuisance, unjust enrichment, declaratory and injunctive relief, conversation, negligent hiring, retention, and supervision, Federal Fair Housing Act, and injury by unlicensed services. On June 25, 2026, Plaintiff Amato filed an ex parte application for a temporary restraining order (“TRO”) against Defendants Plait 51 Homeowners Association, Seabreeze Management Company, Inc., Lorenzo Faderogao, and Shelreese Elieh (collectively “Defendants”). The Honorable Mark Flanagan denied the TRO on the basis that the plaintiff failed to make an adequate showing o irreparable harm. (June 29, 2026 Order). Judge Flanagan granted an order to show cause hearing (“OSC”) by the defendants as to why a preliminary injunction should not issue ordering, restraining, and enjoining the defendants and their employees, agents, or persona, until entry of judgment or further order of the court as to the six requests made by the plaintiff. The six request included: 1. From interfering with, contracting, instructing, directing, or communicating with Silicon Valley Builders, Inc., (CSLB license No. 113389), or any successor licensed contractor retained by Plaintiff, for the purpose of causing, requesting, inducing, or threatening any such contractor to cease, suspend, delay, decline, or refrain from performing work at Unit 2119; 2. From requiring, conditioning, treating, or asserting Architectural Review Committee approval or any other architectural or design approval as a precondition to Plaintiff’s performance of (a) emergency mitigation and mold-remediation work, and (b) the health and safety and code-mandated repairs required by City of San Jose Notice of Violation No. 202604261, including any related permit, plan-submittal, or correction requirement; 3. From assessing, imposing, posting, charging, or collecting any further late charge, “reminder notice” fee, delinquency fee, delinquency interest, fine, penalty, administrative fee, or other charge against Plaintiff’s account (Account No. 095100184764) or against Unit 2119, and from undertaking any other collection activity with respect to the disputed charges, during pendency of this action; 4. From recording, or causing to be recorded, any assessment lien, notice of delinquent assessment, or any other document evidencing, perfecting, or giving notice of such a lien against Unit 2119, and from taking any further step in furtherance of the pre-lien process initiated by the June 8, 2026 “Notice of Intent to Lien” and any related Civil Code section 5660 notice, based upon the disputed charges identified in the Declaration of Gianni Amato; 5. From issuing any further cease-and-desist letter, demand letter, or threat of enforcement to Plaintiff or any contractor retained by Plaintiff concerning the work required by Notice of Violation 202604261, or the emergency mitigation of Unit 2119, during the pendency of this action; and

6. Defendants and their agents shall preserve all records, electronically stored information, and communications concerning the matters at issue in this action

The court ordered the plaintiff to serve the OSC notice and supporting papers no later than July 2, 2026.

The Court has carefully reviewed the plaintiff's notice of ex parte application (totaling 3 pages); memorandum of points and authorities (totaling 6 pages); Declaration of Gianni Amato regarding notice (totaling 2 pages); Declaration of Gianni Amato regarding notice (totaling 4 pages); Exhibits A-M in support of the motion and attached to the Declaration of Amato (totaling 111 pages); proposed order (totaling 5 pages); Judge Flanagan's June 29, 2026 Order (totaling 4 pages); Declaration of Amato regarding June 29 Order and attached Exhibits 1-2 (totaling 14 pages); Supplemental Declaration of Amato regarding June 29 Order (totaling 5 pages); Declaration of Steven C. Christianson (totaling 4 pages); Supplemental Declaration of Steven C. Christianson and attached Exhibit A (totaling 5 pages); Opposition of Defendants' Order to Show Cause (totaling 18 pages); Declaration of Jonathan Shan in support of Defendants' Opposition and attached Exhibits A -E (totaling 30 pages); Plaintiff's Reply (totaling 15 pages); Declaration of Amato and attached Exhibits A-K in support of Reply (totaling 67 pages); Declaration of Teri M. Lawrence in support of the Reply and attached Exhibits A (totaling 5 pages); Objections to the Declaration of Shan (totaling 3 pages); Request for Judicial Notice (totaling 19 pages); proposed order (totaling 5 pages); and plaintiff's notice of supplemental authority (totaling 31 pages); proof of services; and the pleadings.

II. PROCEDURAL MATTERS

A. SERVICE AND NOTICE OF OSC

On June 29, 2026, the Honorable Mark Flanagan denied the plaintiff's TRO and set this OSC Preliminary Injunction. The plaintiff was ordered to provide notice and supporting papers to the defendants no later than July 2, 2026. Upon review of the declarations and supplemental declarations of Amato and Christiansen, the Court finds that the plaintiff complied with timely notice and service of the OSC.

B. REQUEST FOR JUDICIAL NOTICE

Under Evidence Code section 452(c)-(d), the court may take judicial notice of court records and actions of the state. Here, Plaintiff Amato seeks judicial notice of four documents. First Exhibit 1, the Amended and Restated Declaration of Covenants, Conditions and Restrictions of Plant 51 Homeowner Association that was recorded on September 12, 2019, in the Official Records of Santa Clara County as Document. No. 24279008. This request is unopposed and GRANTED. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375).

Second, Exhibit 2 is the Honorable Flanagan's June 29, 2026 Order, denying the TRO and issuing an OSC regarding Preliminary Injunction. This request is unopposed and GRANTED. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Id.*).

Third, the court's records as to *Amato vs Plant 51 Homeowners Association* in Santa Clara County 26SC097946. This request is unopposed, but DENIED under court discretion as unnecessary and irrelevant to evaluate the present issue at hand in case number 26CV493956.

Fourth, the City of San José Department of Planning, Building and Code Enforcement Notice of Violation / Inspection Notice No. 202604261 concerning 88 Bush Street, Unit 2119, including the corrections schedule stated therein. This request is unopposed and GRANTED. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Id.*).